

HCS HB 2708 -- POSSESSION OF UNLAWFUL ITEMS IN A PRISON OR JAIL

SPONSOR: Hovis

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Standing Committee on Corrections and Public Institutions by a vote of 7 to 5. Voted "Do Pass" by the Standing Committee on Rules-Administrative by a vote of 7 to 2 with 1 voting present.

The following is a summary of the House Committee Substitute for HB 2708.

Currently, it is illegal to knowingly deliver, attempt to deliver, possess, deposit, or conceal certain items in or about the premises of any correctional center or jail.

This bill adds to the list of prohibited items unauthorized portable electronic communication devices that are capable of being used to initiate, receive, store, or view communication, information, images, or data. The electronic communication devices include, but are not limited to, cellular telephones, portable telephones, text messaging devices, personal digital assistants, pagers, broadband personal communication devices, and electronic devices with mobile data access. A violation involving an unauthorized portable electronic communication device will be a class D felony.

This bill is similar to HB 2414 (2026).

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPOSERS: Supporters say that electronic devices in prison allow coordination with gangs outside the prison. Individuals are also able to intimidate witnesses and facilitate crime. The current punishment is not a high enough deterrent to stop the activity, and bribes, drones, fence tosses, and other methods allow delivery of contraband.

Testifying in person for the bill were Representative Hovis; Taylor Hagenhoff, Department of Corrections; and Arnie Dienoff.

OPPOSERS: There was no opposition voiced to the committee.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.